EnergyWave



CONFIDENTIAL — DRAFT — FOR DISCUSSION

# Who is applying, and what the evidence establishes about them.

## Entity by entity, fact by fact, with the scope of each.

Defense reviewers ask four things before they read a word of technology: who is the applicant, who owns and controls it, what has it done before, and what is it registered as. This page answers each with its evidence and marks what is not yet established.

### 1 · THE ENTITIES, AND THE ROLE OF EACH

| Entity | Role | Facts | Status |
|---|---|---|---|
| **McLean Capital Development LLC**<br>Wyoming · Filing ID 2025-001612265 | Applicant of record, xTech Search 10 | Filed 12 Feb 2025; Active and in good standing (registry, 8 Oct 2026); Ian Franklin McLean 100% member, President, Sole Member (certificate, 23 June 2026). Approved by the founder as the legal applicant; EnergyWave is its project name. | VERIFIED |
| **EnergyWave, Inc.**<br>Delaware · intended | Intended operating company; would hold the IP, employ the team, receive the raise; the entity named on the deck | **Not formed** as of 14 Oct 2026 (founder's statement, ledger S-38); counsel's formation work pending; no certificate in the package. Intended to qualify as a U.S. small business more than half owned by U.S. citizens for SBIR / STTR (founder to counsel, 5 Oct 2026). | OPEN |
| **McLean Companies LLC**<br>California | Founder's existing company; letterhead on the August white paper; transitional services | Separate from both entities above by the founder's stated intent; related-party terms to be disclosed. | PARTIAL |
| **GovThink Institute**<br>501(c)(3), proposed | Proposed independent policy nonprofit; its relationship to the applicant and to EnergyWave, Inc. is to be defined with counsel | **Not filed, and no formal tie to EnergyWave** (founder's statement, 14 Oct 2026, S-38). Documentary status — incorporation, EIN, exemption application, determination — is not established in the reviewed evidence; the August 2026 client-prepared draft records that an EIN had not yet been obtained. Safeguards (independent board majority, no preferential access or IP flow) are proposals in that draft, not adopted policies; no ownership, control or financial relationship is asserted either way. | OPEN |

## 2 · ELIGIBILITY FACTS FOR THE APPLICANT LLC

| Fact | Value | Evidence | Status |
|---|---|---|---|
| Ownership and control | 100% Ian Franklin McLean | Secretary's certificate, 23 June 2026 (transfer from prior member recorded). | VERIFIED |
| Citizenship basis for the >50% U.S.-citizen test | To be stated by the founder | No document in the package. | OPEN |
| Employees | 4 (entered) | Basis and affiliates unverified. | OPEN |
| Prior DoW / DoD business | **No** | Founder's statement, 9 Oct 2026: the LLC has held no DoD contract or award. The submitted "Yes" and its Instagram link are superseded by the approved correction. | FOUNDER'S STATEMENT |
| Capital raised | ≈ $10,000 including founder contributions; $0 outside debt or equity | Founder's statement, 9 Oct 2026. | FOUNDER'S STATEMENT |
| Overlapping federal support | None known | No award or application record in the package; an NSF Project Pitch was drafted in Sept 2026 and its submission status is not recorded here. | OPEN |
| SAM.gov / UEI / CAGE | UEI and CAGE fields blank in the 9-Oct portal observation and again on 14 Oct; current SAM.gov / UEI / CAGE status unverified | A blank field is not a registration search. Dated context from the September federal on-ramp note: none is required for xTech entry; a CAGE code is required for prize payment; SAM registration needs a formed entity, EIN, physical address and bank account. | OPEN |

| Fact | Value | Evidence | Status |
|---|---|---|---|
| Physical operating location | None stated | P.O. Box 8646, Newport Beach, CA 92658 is a mailing address. | OPEN |
| IP ownership of the proposed work | Entered N/A | The founder filed a provisional (expired) personally; an assignment agreement is planned on EnergyWave, Inc.'s formation; counsel's review of a 2025 contractor IP agreement with a third party against the EnergyWave work is not evidenced in this package and remains a question for counsel (see 04_Legal_and_IP). | OPEN |

## 3 · PROTECTION POSTURE

The Compartmentalization and Anti-Tamper Posture memo (v0.1, 12 Sept 2026) in this folder sets, before there is anything to protect, how know-how and any future hardware would be compartmentalized: knowledge partitioned into imageable / process / state bins; a tamper-responsive "paperweight" kill; post-quantum platform binding; split manufacturing; information compartmentalization; and the legal posture questions for counsel. It uses DoDD 5200.47E and DoDI 5200.39 vocabulary deliberately and claims no device. Its §8 questions are unanswered; v0.2 follows counsel's answers.

## 4 · NAMING

"Department of War" is used in the company's narrative documents. Any field that must match a government form or portal uses the agency name exactly as that form shows it.

Sources: Wyoming registry lookup and secretary's certificate (M-18); Truong thread, founder's message of 5 Oct 2026 (M-19); Approved_Submission_Corrections_2026-10-09 (M-06); Submitted_Application_Private_Review_2026-10-09 (M-06); Federal_On_Ramp_verified_2026-09-16 (M-03b); AT posture memo (S-09 / M-13); GovThink package (M-17).